



PORT QASIM AUTHORITY (AMENDMENT) ORDINANCE, 2002

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PORT QASIM AUTHORITY (AMENDMENT) ORDINANCE, 2002.

ORDINANCE XLIII OF 2002

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ORDINANCE

further to amend the Port Qasim Authority Act, 1973

WHEREAS it is expedient further to amend the Port Qasim Authority Act, 1973 (XLIII of 1973), for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No.1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.-(1) This Ordinance may be called the Port Qasim Authority (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 2, of Act XLIII of 1973. In the Port Qasim Authority Act, 1973 (XLIII of 1973), hereinafter referred to as the said Act, in section 2, for clause (k) the following shall be substituted, namely:-

"(k) "market value" means the average market value prevailing during the preceding three years."

3. Amendment of section 6, of Act XLIII of 1973. In the said Act, in section 6, in sub-section (2),-

(a) for the words "directs" the words "determines" shall be substituted; and

(b) for the words "five" the word "three" shall be substituted.

4. Amendment of section 9, Act XLIII of 1973. In the said Act, in section 9, for sub-section (1) the following shall be substituted, namely:-

"(1) Authority shall have its headquarters within the port area. The Board may establish branch or liaison offices in the vicinity of headquarters or elsewhere."

5. Amendment of section 13, of Act XLIII of 1973. In the said Act, in section 13,-

- (a) in the marginal heading, after the word "Powers" the words "functions" shall be inserted; and
- (b) in sub-section (2), in clause (i), for the full stop at the end, a semicolon shall be substituted and thereafter the following new clauses shall be added, namely:-

"(j) entrust, transfer, assigns or give on contract works connected with the development and operations of the Port to any other person, agency, department, company or contractor on such terms and conditions as the Authority may determine subject to rules, regulations and instructions made or issued under this Act:

Provided that the Authority shall not entrust; transfer, assign, or give on contract any of its operations without approval of the Federal Government;

- (k) to contract out any or all the services or works required to be executed by the Authority under the provisions of this Act; and
- (l) to form subsidiary company or companies under the companies Ordinance, 1984 (XLVII of 1984) either wholly owned or with participation of private sector with prior approval of the Federal Government."

6. Amendment of section 25, of Act XLIII of 1973. In the said Act, in section 25, in subsection (2), for the word "two hundred rupees" the words "the amount as may be notified in official Gazette by the Board" shall be substituted.

7. Amendment of section 27, of Act XLIII of 1973. In the said Act, in section 27, after the word "Board" occurring twice, the Words "of any officer authorized by the Board" shall be inserted.

8. Amendment of section 28, of Act XLIII of 1973. In the said Act, in section 28, in subsection (2) for the words "which may extend to five thousand rupees and with a further fine which may extend to five hundred rupees" the word and comma "as fixed by the Board from time to time, an initial fine and recurring fine" shall be substituted.

9. Substitution of section 58, of Act XLIII of 1973. In the said Act, for section 58, the following shall be substituted, namely:-

"58. Penalty. Whoever, contravenes any provision of this Act or any rule, regulation or bye-law, made or scheme sanctioned thereunder, or commits a default by omission or commission, or makes a misdeclaration bearing upon the safety and security in part, one-shore or off-shore shall, if no other penalty is provided for such contravention, default, omission or commission or misdeclaration be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to rupees one million, or with both."

10. Insertion of new sections, Act XLIII of 1973. In the said Act after section 71, the following new sections shall be inserted, namely:-

"71A. Responsibilities of Master, regarding damages and declaration, etc. The Master, agent, and owner of a vessel, shall, severally, and jointly, be responsible for:-

- (a) any damage caused to the property and servants of the Port, whether within Port's limits or in the approaches, by their vessel or servants Such vessel shall be detained by the Authority till such time the cost of the damage as determined by the Authority is paid;
- (b) any misdeclaration of particulars of a vessel and for disobeying the parameters specified for handling of vessel in Port Qasim Harbour, and shall be liable to a penalty as determined and notified by the Authority from time to time; and
- (c) the sinking or grounding of any vessel or causing damages to any other vessel in the port limits or approaches, caused by their vessel or their servants, and for removal of the sunk, ground or damaged vessel at their own risk and cost, failing which, the Authority may salvage or remove such vessel out of the port's limits and the cost of such removal shall be recoverable from the sale proceeds of such vessel.

71B. Port to be pollution free, etc.-(1) The Authority shall be responsible for maintaining the marine environments of the port's limits in order to ensure that the sea, land, and air is free from pollution.

(2) No Owner, Agent or Master of a vessel, or any industry, manufacturing establishment, mill, factory or any kind, cargo handling company, terminal operator, etc., shall discharge any solid or liquid waste, oily, noxious radioactive and hazardous substances, bilge discharges, residues and mixtures containing noxious solid and liquid wastes, debasting of un-washed cargo tanks and line washing, garbage, emission of any effluent or waste or air pollution or noise in any amount concentration or level in excess of the National Environmental Quality Standards, or standards, which may be specified, from time to time, by the Authority for Port limits.

(3) Any person contravening the provisions of sub-section (2) shall be liable to penalty as determined and notified by the Authority from time to time for each contravention in addition to the charges for cleaning of the Port and removal of pollution there from.

71C. Environmental Pollution, etc.-(1) No proponent of a project shall commence construction or operation unless he has filed with this Authority as initial environmental examination or, where the project is likely to cause an adverse environment effect, and environment impact assessment, and has obtained from the Authority approval in respect thereof.

(2) The Authority shall:-

- (a) review the initial environmental examination and accord its approval, or require submission of an Environmental Impact Assessment by the proponent; or
 - (b) review the Environmental Impact Assessment and accord its approval subject to such condition as it may deem fit to impose, or require that the Environmental Impact assessment be re-submitted after such modification as may be stipulated."
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